

Patent Specification Requirements (Mexico)

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A Practice Note addressing the patent specification requirements in Mexico, including sufficiency, enablement, best mode (best method), and claim clarity.

This Note provides useful information for patent counsel responsible for a global patent portfolio to help them understand the legal framework for determining if a patent application filed in the [Mexican Institute of Industrial Property](#) (*Instituto Mexicano de la Propiedad Industrial*) (IMPI), and any resulting patent, meets the patent specification requirements, the potential scope of protection of the patent, and the invalidity risk of their client's patent or third-party patents in Mexico.

Innovative multinational companies typically seek to protect their inventions globally. Depending on their global manufacturing and supply chain footprint, customer location, and the competitive threat outside their home country, these companies may desire patent protection in countries with robust economies. However, it can be challenging for a patent applicant, owners, licensees (collectively patentee), and their patent counsel based outside Mexico to obtain robust patent protection in that jurisdiction. In addition, when evaluating global patent portfolios, either as part of an audit of their client's intellectual property estate or in connection with a freedom-to-operate study prior to product development or commercial launch, patent counsel will want to have a good understanding of the various global patent regimes and be able to evaluate patent validity risk in a particular jurisdiction.

It is therefore important for patent counsel to understand all the requirements for, and the information that must be included in, a patent specification in Mexico so they can properly counsel patentees located outside Mexico on:

- The patent specification requirements that may allow robust patent protection in Mexico for key inventions developed by the patentee.

- How patent protection fits into their client's global patent filing strategy and intellectual property portfolio.
- Third-party patent validity risk.

Failure to meet, for example, the requirement that the patent specification contain a sufficient written description of the invention for which protection is sought could potentially render patent claims invalid and may affect the scope of protection of any patent granted in Mexico.

This Note addresses the patent specification requirements in Mexico, including:

- Sufficiency, enablement, and best method.
- Unity of invention.
- Claim clarity and conciseness.

Patent Specification Requirements

Legal Basis

All patents and patent applications (collectively patents) in Mexico must comply with the patent

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specification requirements established by the [Federal Law for the Protection of Industrial Property](#) (*Ley Federal de Protección a la Propiedad Industrial*) (LFPPI) and the [Regulations of the Industrial Property Law](#) (*Reglamento de la Ley de la Propiedad Industrial*) (RIPL). These requirements include providing sufficient disclosure of the invention, including:

- Enablement and best method.
- Unity of invention.
- Claim clarity and conciseness.

The LFPPI took effect on 5 November 2020, replacing the former Industrial Property Law (IPL) (Second Transitory Article, LFPPI). This legislative update aimed to modernize the legal framework for intellectual property in Mexico, aligning it with international standards and agreements such as the [United States-Mexico-Canada Agreement](#) (USMCA, or T-MEC in Mexico).

As of 2024, no new regulations for the LFPPI have been issued. Therefore, the RIPL remains in force and serves as the procedural and administrative guideline for matters related to patents, trademarks, and other aspects of industrial property. New regulations may be issued in 2025 to align with the LFPPI's provisions and provide greater clarity for its application.

Required Content

A patent application filed with the [Mexican Institute of Industrial Property](#) (*Instituto Mexicano de la Propiedad Industrial*) (IMPI), and any resulting patent (collectively patent), must contain certain defined content, including:

- The name, nationality, and domicile of the applicants and inventors.
- The title or name of the invention (see Title of the Invention).
- A description of the invention (see Description), including:
 - a discussion of the relevant technical field and background of the claimed invention;
 - an identification of the relevant prior art documents;
 - an explicit indication of how to make or use the claimed invention;
 - the best-known method of practicing the claimed invention; and

– a numbering and detailed description of any figures in the drawings, if applicable.

- At least one claim (see Claims).
- An abstract (see Abstract).
- The drawings, if applicable (see Drawings).

For life-sciences inventions, where applicable:

- The patent application must also include a copy of the certificate of deposit of the biological material from an international depository authority (IDA) recognized by the Budapest Treaty on the International Recognition of the Deposit of Microorganisms for the Purposes of Patent Procedure (Budapest Treaty), if applicable (see [World Intellectual Property Organization: Budapest Treaty](#)).
- The specification must provide a list of nucleotide or amino acid sequences.

(Article 94, LFPPI; Article 28, RIPL; see Life-Sciences Inventions.)

The IMPI generally accepts a patent application that meets the [European Patent Office's](#) requirements.

Title of the Invention

The name or title of the invention must:

- Be brief and precise.
- Clearly indicate the nature of the invention.

(Article 94(III), LFPPI; Article 25, RIPL.)

Fantasy names, commercial indications, and distinctive signs are not acceptable (Article 95, LFPPI; Article 25, RIPL).

Description

Articles 94(IV) and 96 of the LFPPI and Articles 27 and 28 of the RIPL outline the description requirements for the patent specification. Under Article 94(IV) of the LFPPI, the description must disclose:

- The invention in a sufficiently clear and complete manner to enable a person of ordinary skill in the art (known as a technician in the field in Mexico) to carry it out.
- The best method known to the applicant for implementing the invention.
- Information that supports the invention's industrial applicability.

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Article 96 of the LFPPI and Article 28(IV) of the RIPL require the description to be concise, complete, and clear and according to the claims submitted. The description must:

- Begin with the name or title of the invention.
- Specify the technical field to which the invention belongs.
- Indicate the state of the art known to the patentee as of the application filing date or any earlier priority date (effective filing date).
- Disclose the invention as claimed, in terms that:
 - enable an understanding of the technical problem and the solution provided by the claimed invention; and
 - describe the invention's advantageous effects, if any, compared to the prior art, highlighting the differences between the claimed invention and known technology.
- Indicate the deposit of biological material, if applicable, including:
 - the name and address of the IDA;
 - the date of deposit;
 - the number the IDA assigned to the deposited material; and
 - the nature and characteristics of the deposited material.
- Enumerate and describe any figures in the drawings, referring to them and their parts.
- Indicate the best method known to the applicant for implementing the claimed invention. This includes providing examples and references to the drawings, if applicable.
- Indicate the invention's industrial application, if not evident from the description or the nature of the invention.

(Articles 96 and 98, LFPPI; Article 28, RIPL.)

The description must include headings for each of these requirements, such as:

- Technical field.
- Background.
- Disclosure of invention.
- Deposit of biological material.

- Figures enumeration.
- Best-known method.

(Article 28, RIPL.)

The description must not include drawings within the text of the written portion of the specification. Instead, any drawings should be included as separate sheets. However, the written text can include chemical or mathematical formulas or equations, computer program instructions, and tables. (Article 27, RIPL.) For more information, see Description of Claimed Invention.

Claims

Articles 94(V) and 97 of the LFPPI and Articles 27 and 29 of the RIPL outline claim requirements. Under Article 94(V) of the LFPPI, a claim must:

- Be clear and concise (see Claim Clarity and Conciseness).
- Precisely define the subject matter for which protection is sought, based on its essential technical features.
- Be supported by the description.
- Not exceed the description's scope.

Under Article 97 of the LFPPI, a claim can be independent or dependent. An independent claim encompasses the invention's essential technical features for which protection is sought. A dependent claim includes the essential technical features of the independent claim to which it refers, specifying additional technical features that are consistent with and derived from the independent claim. The dependent claim reproduces the independent claim as if fully restated and incorporates all the limitations of the claim on which it depends.

Article 29 of the RIPL describes the preferred format for claims. For example:

- The number of claims must correspond to the nature of the claimed invention.
- When submitting multiple claims, the claims must be numbered consecutively using Arabic numerals.
- Claims must not reference the description or drawings unless necessary.
- Claims must be drafted based on the invention's technical features.

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- If it makes a claim easier to understand, the claim can include a reference sign in parentheses when mentioning a technical feature. The reference sign corresponds to that feature in the patent drawings.
- The first claim must be independent and refer to the essential features of a product or process for which patent protection is sought.
- If the application includes more than one category of invention within the same inventive concept, each category must include at least one independent claim. The categories are those established under Article 45 of the former IPL, which provides that a single patent application can include claims for:
 - a specific product and those related to processes specially designed for its manufacture or use;
 - a specific process and those related to an apparatus or means specially designed for its application; and
 - a specific product, a process specially designed for its manufacture, and an apparatus or means specially designed for its application.
- Dependent claims must:
 - include the features and limitations of the claims on which they depend; and
 - specify additional features consistent with the related independent or dependent claims.
- Dependent claims that refer to two or more claims cannot be the basis for any claim that also depends on two or more claims. In other words, multiple dependent claims cannot depend on another multiple dependent claim.

Claims must not contain drawings. However, claims can include chemical or mathematical formulas or equations as well as tables when the subject matter makes their use advisable. (Article 27, RIPL.) For example, chemical formulas are acceptable when the invention is a new chemical compound, and tables are acceptable when a new chemical compound is claimed based on X-ray diffraction peaks.

Lastly, under Article 12 of the [Agreement that Establishes the Rules for Filing Applications Before the IMPI](#) (*Acuerdo que establece las reglas para la presentación de solicitudes ante el Instituto Mexicano de la Propiedad Industrial*), when applicable, a claim must contain:

- A preamble indicating the invention's technical features that are necessary for understanding the

claimed object and that, in combination, form part of the state of the art.

- A characteristic part, preceded by the words “characterized in that,” “characterized by,” “in which the improvement comprises,” or other similar words that concisely set forth the technical features to be protected.

A preamble is not necessary when the claimed invention is a novel and self-explanatory product or process that does not require an introductory explanation of the technical features to understand its scope. For example, a claim for a new chemical compound with a clear and unique molecular structure could simply focus on the characteristic part without needing a detailed preamble about prior art, as the new compound represents the novel invention.

However, a preamble is usually necessary for mechanical inventions because it helps establish the technical context of the invention and clearly defines the claim's subject matter. In mechanical inventions, the preamble typically describes the invention's general features, including its type (such as a machine, mechanism, or device) and intended use or function. This helps differentiate the new invention from prior art and establishes the boundaries of the protection being sought.

Abstract

Under Article 99 of the LFPPI, the abstract must:

- Be clear and concise.
- Include a summary of the disclosure contained in:
 - the description;
 - the claims; and
 - the most illustrative drawing of the invention.
- Indicate the technical field to which the invention belongs.
- Enable an understanding of:
 - the technical problem and the claimed invention's solution; and
 - the invention's industrial application.

If applicable, the summary should indicate the chemical formula that, among those in the description and claims, best characterizes the invention. The abstract should be as concise as the disclosure allows, but preferably between 100 and 200 words. It must not contain statements regarding

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the invention's alleged merits, value, or application. (Article 33, RIPL.)

The abstract should refer to the most illustrative drawing of the invention. Each main technical feature mentioned in the abstract and illustrated by a drawing can include a reference sign in parentheses. (Article 33, RIPL.)

The abstract can contain chemical or mathematical equations or formulas (Article 27, RIPL.).

Drawings

A patent must include one or more drawings when necessary to understand the invention (Article 94(VII), LFPPI).

If the application does not include drawings that are necessary to understand the invention, the IMPI requires their submission within two months from the working day following notice. If the applicant fails to comply, the IMPI considers the application abandoned. (Article 30(I), RIPL.)

If the application, description, or claims reference drawings that are necessary to understand the invention but the drawings are not submitted with the application, the IMPI requires the applicant to submit them within two months from the working day following notice. If the applicant fails to comply, the IMPI disregards any reference to the drawings. (Article 30(II), RIPL.)

When drawings are submitted after the application filing date following the IMPI's request, and the drawings introduce new matter compared to the original drawings, the IMPI recognizes the filing date as the date of submission of the amended drawings. In other words, the IMPI does not acknowledge the original filing date if the amended drawings introduce new matter compared to the original drawings. (Article 30(III), RIPL.)

All patents:

- Should include graphs, flowcharts of processes, and diagrams as drawings (Article 30(IV), RIPL.).
- Must present drawings in a way that allows for a clear understanding of the invention, including the features or parts of the claimed invention (Article 30(V), RIPL.).

Applicants can submit:

- Photographs instead of drawings when drawings are not sufficient or suitable to illustrate the invention's features (Article 30(VI), RIPL.).

- Drawings provisionally with the application, without meeting all the IMPI's requirements. However, they must submit final drawings that comply with these requirements within two months from the application filing date. If the applicant does not submit the final drawings within this period, the IMPI considers the application abandoned. (Article 31, RIPL.)

If the applicant adds new matter to the final drawings, compared to the provisional drawings, the IMPI recognizes the date on which the applicant submits the final drawings as the filing date rather than the original filing date (Article 31, RIPL.).

Description of Claimed Invention

In Mexico, the description in the patent specification must:

- Disclose the invention in a sufficiently clear and complete manner (see Sufficiency). This sufficiency requirement means the description must:
 - enable a person of ordinary skill in the art to implement the claimed invention (see Enablement);
 - disclose the best method known to the applicant for its implementation (see Best Method); and
 - disclose information supporting the invention's industrial applicability. In theory, this requirement only applies when the description is not sufficiently clear or complete to ensure a full understanding of the invention and to guide a person of ordinary skill in the art in its implementation.

(Article 94(IV), LFPPI.).

- Be drafted in a concise, complete, and clear manner and according to the submitted claims (Article 96, LFPPI; Article 28, RIPL.).
- Disclose the claimed invention in terms that:
 - enable an understanding of the technical problem and the solution the claimed invention provides; and
 - describe the invention's advantageous effects, if any, compared to the prior art, highlighting the differences between the claimed invention and similar known technology (Article 96, LFPPI; Article 28, RIPL.).

Accordingly, the description must provide enough detail to support the claims and fully disclose

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the claimed invention. The required level of detail depends on whether the description enables a person of ordinary skill in the art to understand and implement the claimed invention without undue experimentation, not whether the patentee invented or possessed the claimed invention.

The IMPI can require an applicant to provide a copy or model of the claimed invention, in natural size or on a reduced scale, to help understand the invention (Article 26, RIPL). Although this is unusual, Article 26 of the RIPL could be the basis for the IMPI requesting a sample of the invention. In these cases, the claimed invention needs to have been invented and in the applicant's possession.

Although applicants are not required to include examples to demonstrate industrial utility or enablement, the IMPI should recognize the applicant's disclosure in good faith. It is not the examiner's role to determine the application's veracity. The most common practice is to consider any claimed subject matter unclear if it is not exemplified or experimentally demonstrated in the description.

Satisfaction of the description requirements is determined as of the application's effective filing date.

Level of Ordinary Skill in the Art

Under Mexican law, the level of ordinary skill in the art is important to determine whether certain patent specification requirements are met, such as the requirements of:

- Sufficient disclosure (see Sufficiency).
- Enablement and best-known method (see Enablement and Best Method).
- Clarity and conciseness (see Claim Clarity and Conciseness).

The description must disclose the claimed invention in a sufficiently clear and complete manner to enable a person of ordinary skill in the art to carry it out, including:

- The best method known to the applicant for its implementation.
- Information supporting the invention's industrial applicability.

(Article 94(IV), LFPPI.)

A patent can be declared null if it does not disclose the claimed invention in a sufficiently clear and

complete manner to enable a person of ordinary skill in the art to carry it out (Article 154(II), LFPPI).

Mexican law implicitly applies the concept of ordinary skill in the art through examination practices, which align with international patent standards (including US and European patent law). IMPI examiners assess the specification from this skilled person's perspective to ensure that the description and claims provide a practical pathway for implementing the invention.

The LFPPI and RIPL do not define a person of ordinary skill in the art, and no cases or guidelines clarify how to determine this level of skill. The following cases mainly focus on expert witnesses but suggest that common general knowledge can be used to determine the level of ordinary skill in the art:

- **Direct Amparo 78/2012. First Chamber of the Supreme Court of Justice. Thesis No. 1a. CCXCIV/2013 (10a.).** Mexico's [Supreme Court of Justice](#) (*Supreme Corte de Justicia de la Nación*) issued a non-binding decision establishing that a technical expert should have expertise in a technical field related to the subject matter.
- **Direct Amparo 339/2016. First Collegiate Circuit Court. Claimant: Novartis AG. Thesis No. I.1o.A.143 A (10a.).** The court clarified that, based on Article 12 of the former IPL (now Article 54 of the LFPPI) and Article 29 of the RIPL, to analyze issues in an administrative infringement proceeding, the judge must rely on the testimony or opinion of an expert witness who understands the technical aspects of the relevant field and technical context of the granted claims.

Sufficiency

The description must disclose and specify the invention as claimed (Article 96(IV), LFPPI; Article 28(IV), RIPL). This requirement guarantees that the claimed invention is sufficiently disclosed and detailed in a way that directly corresponds to the claims, making it clear to examiners and third parties exactly what is patented. A patent can be declared null if it does not disclose the claimed invention in a sufficiently clear and complete manner to enable a person of ordinary skill in the art to carry it out. Therefore, a claim can be revoked or its scope limited if the description fails to meet the sufficient disclosure requirement. (Article 154(II), LFPPI.)

For example, this requirement may not be satisfied if the description does not adequately support the

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claimed invention's features, or if the disclosed information is incomplete or unclear, such that a person of ordinary skill in the art cannot understand or implement the claimed invention.

The description must also:

- Be in clear and precise terms that enable an understanding of the technical problem and the solution the claimed invention provides.
- Present the claimed invention's advantageous effects compared to the prior art.
- Highlight the differences between the claimed invention and similar known technology.
- Be concise, but as complete as possible and not include content that does not contribute to a clear and complete understanding of the invention. This requires the description to exclude digressions that:
 - disrupt the flow of the narrative; or
 - introduce information lacking a direct and apparent connection to the main subject.

(Article 96(IV), LFPPI; Article 28(IV), RIPL.)

Sufficiency generally depends on the specification's contents, not external references. Information that the specification merely references but does not disclose cannot satisfy the sufficiency requirement. In specific cases, referenced documents that are publicly accessible and closely related can be considered complementary information.

The description's sufficiency is usually assessed from the perspective of a person of ordinary skill in the art. The specification must enable this person to understand the invention's scope and meaning based on the description and claims. In most cases, the person's general knowledge as of the effective filing date can fill in minor gaps but cannot compensate for a fundamentally insufficient description.

In Mexican practice, as in Europe, sufficient disclosure generally requires that a person of ordinary skill in the art can interpret the description, using their expected level of knowledge and common knowledge, to reliably and repeatedly put the claimed invention into practice without undue burden or an unreasonable number of initial failures (known as undue experimentation). For more information on sufficiency in Europe, see [Practice Note, Patent Validity: Sufficiency](#).

Mexican law does not explicitly require plausibility as a distinct criterion. However, the sufficient disclosure requirement, including enablement, addresses

concerns about plausibility. A patent similarly cannot be revoked based solely on a lack of plausibility, but it may indirectly lead to a finding of insufficient disclosure or lack of inventive step.

The concept of sufficient disclosure in Mexico shares similarities with the written description requirement in US patent law. Both require the applicant to provide a disclosure that clearly supports the claimed invention. However, Mexican law focuses on ensuring the description is sufficiently detailed for a person of ordinary skill in the art to understand and implement the claimed invention, while US law emphasizes demonstrating that the applicant possessed the claimed invention as of the application filing date. For more information on US patent specification requirements, see [Practice Notes, Patent Drafting: The Specification](#) and [Patent Litigation: Specification Requirements](#).

In Mexico, there are no established cases or specific guidelines regarding the role of the level knowledge of a person of ordinary skill in the art, the concept of undue experimentation, or plausibility.

Enablement

Enablement is closely tied to the sufficiency standard. The description must disclose the invention in a sufficiently clear and complete manner to enable a person of ordinary skill in the art to carry it out (Article 94(IV), LFPPI). This aligns with global standards for enabling disclosures and ensures that the invention is accessible to practitioners without requiring inventive effort.

Enablement is not a separate requirement in Mexico, but part of the sufficient disclosure requirement. Enablement focuses on whether the specification enables a person of ordinary skill in the art to implement the claimed invention (Article 94(IV), LFPPI). This includes describing the best method known to the applicant for practicing the claimed invention (see Best Method). For example, if the description of a chemical process omits essential details, such as reaction conditions or a required catalyst, the description likely will not satisfy the sufficient disclosure requirement because a person of ordinary skill in the art cannot implement the claimed invention without undue experimentation, rendering the patent non-enabling and therefore invalid.

While the concept of enablement in Mexico shares similarities with US law, enablement is part of the

sufficient disclosure requirement rather than a separate legal test. Both systems require the patent specification to provide enough information for a person of ordinary skill in the art to implement the claimed invention. However, Mexican law focuses on the integration of enablement within the broader sufficiency framework, while US law treats enablement and written description as distinct requirements with independent implications for patent validity.

Unlike in other jurisdictions and as noted above, there is no explicit plausibility requirement for patents in Mexico. However, Mexican patent examiners can address plausibility concerns through the enablement requirement. Examiners can request clarification or further details about the invention's subject matter and the proposed solution to the technical problem, particularly if the invention's feasibility is unclear from the description.

Best Method

Mexican law refers to the requirement of “best method” or “best mode” as the best-known method. This requirement is linked to the sufficient disclosure requirement in that the description must include the best method for implementing the claimed invention known to the applicant.

Failure to disclose the best-known method can:

- Negatively impact the sufficiency of disclosure, potentially rendering the patent claims invalid (Article 154, LFPPi).
- Lead to objections regarding the clarity, completeness, or sufficiency of disclosure, which can affect the enforceability or scope of the claims.

Unlike US law, Mexican law does not expressly address a patentee's intent when assessing failure to disclose the best-known method. Mexican law focuses on whether the description objectively includes the best method known to the applicant (Article 94(IV), LFPPi; Article 28(VII), RIPL).

It is not always clear whether an applicant disclosed the best-known method of achieving a certain result. While prior art provides insight into known methods, the applicant may have access to additional proprietary knowledge, experimental results, or internal evaluations which leads them to choose a specific method. Therefore, the applicant is in the best position to determine and disclose the most

effective or efficient method based on the state of the art at the time of filing.

In this sense, disclosing the best-known method is subjective and depends on the applicant's understanding and knowledge when preparing the patent application. They must ensure that the disclosed method is the most suitable method based on their knowledge of the invention and the relevant technical field. However, no Mexican law explicitly addresses whether deliberately withholding the best-known method is grounds for invalidation.

The enablement requirement intertwines with the best-known method requirement in that the description must provide the best-known method or the applicant's preferred way to implement the claimed invention (Articles 94(IV) and 96(VI), LFPPi; Article 28(VII), RIPL).

When appropriate, this indication should:

- Include practical examples or specific applications of the claimed invention.
- Reference the drawings.

(Article 96(VI), LFPPi; Article 28(VII), RIPL.)

Although the description of the claimed invention must include the best way to implement the claimed invention, there is no need to exemplify all possible or claimed embodiments of the claimed invention.

In Mexico, no cases or guidelines clarify the best-known method requirement.

Unity of Invention

Unity of invention requires a patent to relate to a single invention or a group of inventions that are linked by a common inventive concept. Inventions that share essential technical characteristics constituting their contribution to the prior art satisfy this requirement. (Article 93, LFPPi.) This means there must be a clear technical connection between the inventions where their essential technical features contribute to the same novel solution or advancement in the field of technology. (Article 93, LFPPi.)

In Mexico, a patent cannot be revoked based solely on a lack of unity of invention. The examination process typically addresses lack of unity of invention, asking applicants to divide their application into separate applications for unrelated inventions. The LFPPi allows for a broader interpretation of the unity

of invention requirement than the former IPL. The former IPL only required that a patent application relate to a single invention, or to a group of inventions related in such a way that they form a single inventive concept, without further clarification. (Article 43, IPL.)

Divisional applications are a valuable tool for addressing unity of invention objections or pursuing additional inventions disclosed in a parent application. Under the LFPPI, an applicant can file a divisional application at any time while the parent application is pending, provided the parent application has not been abandoned or granted (Article 100, LFPPI).

Article 100 of the LFPPI outlines specific requirements for divisional filings, including submitting all necessary specifications, claims, and drawings. However, these submissions cannot contain new material or broader claims than those in the original application. Additionally, each divisional application must claim an invention different from the invention in the original or any prior divisional application. When an invention or a group of inventions are not claimed due to the division, these may not be claimed again in the original application or the application that gave rise to the division.

The LFPPI also limits when applicants can file divisional applications. Applicants must file any divisional applications before a final decision is made on the parent application. This marks a significant shift from the IPL, which allowed applicants to file divisional applications any time during the prosecution of the parent application. Under the LFPPI, applicants can only file a voluntary divisional application when the application originates from the original application. Serial divisional applications, meaning those filed from another divisional, are not allowed unless the IMPI requires or deems them appropriate. (Article 113, LFPPI.)

When filing a divisional application, applicants must avoid adding new subject matter not disclosed in the parent application. The divisional application must not claim the same subject matter as the original application, and the filing date and priority of the divisional application remain the same as the parent application (Article 102, LFPPI). This means divisional applications essentially inherit the parent application's filing date, and the patent term for divisional patents is 20 years from that original date (Article 53, LFPPI).

Divisional applications must also direct claims to a distinct invention not covered by the parent application. This is particularly important because Article 101 of the LFPPI prohibits double patenting,

meaning multiple patents cannot be granted for the same invention even if the claims are reworded or slightly modified. To avoid double patenting, applicants should carefully draft claims in divisional applications to cover separate and distinct aspects of the invention disclosed in the original application.

If the IMPI raises a unity of invention objection, applicants can argue that the claims satisfy the unity requirement or file a divisional application to pursue the non-elected invention.

Other Requirements

The description must specify the technical field to which the invention belongs (Article 96(II), LFPPI; Article 28(II), RIPL). This is likely because the technical field establishes the context and scope of the invention, ensuring clarity for both legal and practical purposes. Identifying the technical field provides a framework that helps examiners, practitioners, and others skilled in the art understand the claimed invention's relevance, intended application, and novelty in that technical field. This precision also facilitates a clear interpretation of the patent's terms and claims, which enables a proper assessment of the claimed invention's patentability and alignment with existing knowledge in the technical field.

Additionally, the description:

- Must indicate the state of the art known to the applicant, as of the effective filing date, that is useful for understanding the claimed invention (Article 96(III), LFPPI; Article 28(III), RIPL).
- Should cite any documents reflecting this prior art (Article 28(III), RIPL).
- Must describe the figures in the drawings, referencing them and their components, to provide greater clarity and ensure a comprehensive understanding of the invention, especially for mechanical inventions (Article 96(V), LFPPI; Article 28(VI), RIPL).
- Must provide adequate support for the claims.

The description must support the claims. Therefore, the claims must not exceed the description's scope. (Article 94(V), LFPPI.) This requirement aims to ensure that the scope of protection the claims grant is consistent with the technical disclosure in the description. The description is the foundation on which the claims are built, ensuring the claims accurately reflect the claimed invention without introducing new, unsubstantiated elements.

The description must also align with the claims (Article 96, LFPPI). This requirement seeks to ensure that the technical disclosure in the description fully supports the claims, and the claimed invention is adequately described.

The support requirement prevents discrepancies between what an applicant claims versus discloses and avoids situations where claims could be construed as overbroad or speculative, which could undermine the patent's validity.

Computer-Implemented Inventions

For computer-implemented inventions, including AI inventions, the sufficient disclosure requirement under Article 94 of the LFPPI poses specific challenges. In general, the patent must demonstrate a clear technical solution and sufficiently disclose the implementation of the claimed invention.

To satisfy the sufficient disclosure requirement, the description must provide enough detail to enable a person of ordinary skill in the art to implement the claimed invention. For computer-implemented and AI inventions, this typically includes:

- A clear description of the algorithm or computational process.
- Functional block diagrams or flowcharts explaining how the invention operates.
- Specific details about the input and output.
- Any training process for AI models, if applicable.

A vague description of the invention's functionality without explaining the technical means, such as merely stating that the system predicts user preferences, may be insufficient.

If the invention involves specific hardware, the description usually must clearly explain the invention's interaction between the hardware and software. Examiners often expect the description to include findings on how the claimed features achieve the technical solution.

Claims directed to purely abstract ideas, such as mathematical methods or general principles, are not allowed. For more information on patent-eligible subject matter in Mexico, see [Practice Note, Patent-Eligible Subject Matter \(Mexico\)](#).

Patents for computer-implemented inventions typically should:

- Include pseudocode or detailed examples to illustrate how to implement the invention.
- Provide practical applications or examples to demonstrate the invention's utility and technical contribution.
- Specify training datasets and methods used for AI-related inventions to show enablement.

In Mexico, no cases or guidelines clarify the examination standards for computer-implemented and IA inventions. Criteria can change depending on the examiner.

Life-Sciences Inventions

Life-sciences inventions, including biotechnological and pharmaceutical inventions, also face unique sufficiency challenges. In general, sufficiency for life-sciences inventions often hinges on including experimental data, the best-known method, and biological material deposits, when applicable.

For inventions involving biological material that cannot be sufficiently described in writing, the applicant must deposit the material with a recognized IDA to satisfy the sufficiency requirement (Article 98, LFPPI; Article 34, RIPL). An applicant must deposit the material before the application's effective filing date.

The application and the description must contain the following relevant information available to the applicant:

- The nature and characteristics of the deposited biological material.
- The name and address of the IDA.
- The date of deposit.
- The number the IDA assigned to the deposit.

(Article 98, LFPPI; Article 34, RIPL.)

The application must also attach a copy of the deposit certificate (Article 34, RIPL).

Descriptions for life-sciences inventions must also include experimental data to demonstrate that the invention works as described and the best-known method. For example:

- For pharmaceutical compositions, data demonstrating efficacy or stability may be necessary.

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- For genetic inventions, the description must fully disclose nucleotide or amino acid sequences and often require the list of sequences.

Applicants need not provide experimental evidence for every embodiment in the claim's scope. However, the invention's description must be sufficiently clear and complete to enable a person of ordinary skill in the art to reproduce it (see Enablement).

In practice, while claims can reasonably generalize the disclosed examples, a lack of experimental evidence for all embodiments often leads examiners to raise objections. These objections can relate to sufficiency of disclosure, clarity, support, or inventive step. Examiners may argue that the application fails to provide enough detail or omits the best-known method. They may also challenge inventive step if the submitted experimental evidence does not adequately support the claimed technical effect.

Although the LFPPI allows the IMPI to request supplementary information and documentation, it does not explicitly address the post-filing submission of experimental data. Post-filing evidence is commonly accepted if submitted in response to a substantive office action raising these objections. The technical effect being supported must be explicitly disclosed or clearly derivable from the original application.

Furthermore, the best-known method requirement is particularly relevant for processes or methods in molecular biology or drug synthesis. In cases involving polymorphs, the description will not satisfy the sufficient disclosure requirement where:

- The description fails to clearly describe the methods used to measure the parameters that identify the claimed polymorph.
- The described preparation processes are identical to those in the prior art, yet the description asserts that the polymorph is different.
- All described preparation methods rely on crystallization using seed crystals, but the description does not disclose the process for preparing the seed crystals.

Regarding selection patents, applicants should generally file sufficient experimental data to demonstrate the technical advantages of a selection that the prior art could not predict, preferably through comparative examples. Technical advantages include:

- Synergy.
- Reducing side effects.

- Lower doses with greater efficacy in certain treatments.

Claim Clarity and Conciseness

A claim is the subject matter for which protection is sought in a patent (Article 45(V), LFPPI). Claims must:

- Be clear and concise (Article 94(V), LFPPI).
- Define the subject matter for which protection is sought based on its essential technical features (Article 94(V), LFPPI).
- Be drafted according to the invention's technical characteristics (Article 29(IV), RIPL).

The granted claims determine the rights that a patent confers (Article 54, LFPPI). In practice, a patent claim must be interpreted to determine whether the claim satisfies the clarity and conciseness requirement. A claim is interpreted as of its effective filing date based on the description and, where applicable, the drawings, the sequence listing, and the deposit of biological material referenced in Articles 94, 96, and 98 of the LFPPI.

In Mexican patent law, "clarity" is analogous to "definiteness" in claim drafting. Claims are more likely to satisfy the clarity requirement if they use standard terminology according to the relevant technical field. The words and terms a claim uses, and therefore the description uses, should align with those commonly used in the invention's relevant technical field. This ensures clarity and prevents misinterpretation.

The claims and the description must also be consistent. The description should serve as a basis for interpreting the claims and provide additional context where necessary. If the claims use different terms than the description, the claims could be considered unclear and unsupported.

Applicants should avoid:

- Vague terms like "approximately" and "around" because they do not allow for precise comparison with the prior art and introduce ambiguity in claim interpretation.
- Subjective or comparative expressions like "greater," "thin," or "strong" because they lack precise meaning.

Applicants should use specific values, ranges, and clearly defined technical terms that examiners can objectively assess. The description should fully

Patent Specification Requirements (Mexico)

describe, and sometimes exemplify, the defined technical terms.

Like sufficient disclosure, claim clarity plays a critical role in ensuring patents are enforceable and comprehensible. Ambiguity in claims often leads to insufficient disclosure objections during examination, and can serve as grounds to challenge a patent's validity based on lack of sufficiency (Article 154, LFPPI).

While the law permits some flexibility in language, claims must:

- Define the invention's scope in a manner that:
 - a person of ordinary skill in the art can understand; and
 - is consistent with the disclosed description.
- Be supported by the description.
- Be consistent with the disclosed technical features.

(Article 94(V), LFPPI; Article 29(IV), RIPL.)

An applicant cannot introduce new subject matter in the description through amendments during prosecution. Any modification, including changes to the claims or specification, must be based on the original application's content as filed. For example, removing a claim feature or disclaimer that narrows the invention could be seen as introducing new matter if it changes the scope of the original description.

Further, disclosing specific ranges or species may limit a claim's breadth. Patents usually cannot claim a genus or other species unless the description adequately supports the claim.

Practical Considerations

In Mexico, patent specification requirements play a crucial role in determining the validity and enforceability of a patent. These requirements can significantly impact patentees during prosecution, monetization, and litigation, and potential infringers who challenge a patent's validity.

A potential infringer can point to deficiencies in the patent specification to attempt to invalidate a patent, such as lack of clarity, completeness, enablement, or support. If a claim is vague or lacks a clear technical definition, a potential infringer can argue that the patent is invalid due to lack of sufficiency, making it impossible to determine its scope. Similarly, if the

patent description does not provide sufficient detail for a person of ordinary skill in the art to replicate the invention, a potential infringer can argue that the patent is invalid due to lack of enablement.

During prosecution, patent examiners often require additional clarifications to address these issues. Examiners can reject or narrow claims if a patentee fails to satisfy these requirements.

Challenges may arise if the patent fails to disclose the best-known method, which could indicate a lack of sufficiency (see Best Method). If a patent fails to disclose the best-known method, the claims may be invalidated, particularly if the patentee is shown to have concealed critical methods that affect the claimed invention's technical effect.

To minimize rejections during prosecution:

- Applicants should:
 - clearly define claims using precise technical terms according to the relevant technical field;
 - prepare to provide additional explanations or examples if the IMPI requests them; and
 - disclose the best-known method for implementing the invention.
- Claims should avoid imprecision.
- The description should:
 - define terms that could cause ambiguity;
 - include sufficient detail on how to make and use the invention, including potential variations, embodiments, and processes that fall within the scope of the claims; and
 - establish unity between the claims, particularly regarding the invention's various aspects, such as product and process claims. If the application claims multiple inventions, their relationship must be clear, and the technical contribution to the state of the art must be identifiable.

If an objection concerns lack of clarity or enablement, patentees can submit additional examples, experimental data, or clarifications to address these issues provided the new information is consistent with the original application. In some cases, amendments to the claims or description may be necessary to overcome deficiencies, but these amendments cannot introduce new matter that the original application did not disclose.

Patent Specification Requirements (Mexico)

Patentees must comply with Mexico's sufficiency and other specification requirements when preparing, filing, and prosecuting patent applications. By proactively addressing potential issues, such as clarity, enablement, and best-known method disclosure, patentees can mitigate the risk of rejection or invalidation while enhancing the strength of their patent portfolio.

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